

CHAPTER 27.

An Act to amend the law with respect to Customs in the Isle of Man. [4th August 1926.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Duties on
tobacco.
8 & 9 Geo. 5.
c. 41.

1.—(1) The additional duties of Customs on tobacco removed or imported into the Isle of Man imposed by the Isle of Man (Customs) Act, 1918, shall continue to be charged, levied and paid as from the first day of August, nineteen hundred and twenty-six, until the first day of August, nineteen hundred and twenty-seven.

9 & 10
Geo. 5. c. 74.

(2) In the case of the duties of Customs on tobacco removed or imported into the Isle of Man, the preferential rate under section five of the Isle of Man (Customs) Act, 1919 (which relates to Imperial preference) shall be three-fourths of the full rate.

Duties on
ale or beer.
15 & 16
Geo. 5. c. 56.

2. The duties of Customs on ale or beer removed or imported into the Isle of Man imposed by the Isle of Man (Customs) Act, 1925, shall continue to be charged, levied and paid as from the first day of August, nineteen hundred and twenty-six, until the first day of August, nineteen hundred and twenty-seven.

Duties on
spirits.
11 & 12
Geo. 5. c. 40.

3. Save as hereinafter provided, the additional duties of Customs on spirits removed or imported into the Isle of Man imposed by the Isle of Man (Customs) Act, 1921, shall continue to be charged, levied and paid as from the first day of August, nineteen hundred and twenty-six, until the first day of August, nineteen hundred and twenty-seven:

Provided that, in the case of the spirits set out in the First Schedule to this Act, there shall, as from the twenty-second day of June, nineteen hundred and twenty-six, be charged, levied and paid such additional duties of Customs as shall be sufficient to make, when added to the existing duties, duties at the rates set out in that Schedule.

4. The duties of Customs on cocoa removed or imported into the Isle of Man imposed by the Isle of Man (Customs) Act, 1924, shall continue to be charged, levied and paid as from the first day of August, nineteen hundred and twenty-six, until the first day of August, nineteen hundred and twenty-seven.

Duties on
cocoa.
14 & 15
Geo. 5. c. 24.

5. The duties of Customs on hops, and on extracts, essences and other similar preparations made from hops, removed or imported into the Isle of Man imposed by the Isle of Man (Customs) Act, 1925, shall continue to be charged, levied and paid as from the first day of August, nineteen hundred and twenty-six, until the first day of August, nineteen hundred and twenty-seven.

Duties on
hops.

6.—(1) The duties of Customs on motor cars, including motor bicycles and motor tricycles, and their accessories and component parts, removed or imported into the Isle of Man imposed by the Isle of Man (Customs) Act, 1925, shall continue to be charged, levied and paid as from the first day of August, nineteen hundred and twenty-six, until the first day of August, nineteen hundred and twenty-seven.

Duties on
motor cars,
&c.

(2) The exemption from Customs duty which is given by subsection (3) of section six of the said Act in respect of motor cars which are proved to the satisfaction of the Commissioners of Customs and Excise to be constructed and adapted for use and intended to be used solely for certain trade and other purposes, and chassis, component parts and accessories which are so proved to be intended to be used solely for any such motor cars, shall be deemed to have ceased as from the twenty-second day of June, nineteen hundred and twenty-six, except as respects any such cars, chassis, parts or accessories which are shown to the satisfaction of the Commissioners to have been removed or imported into the Isle of Man before the said twenty-second day of June:

Provided that, notwithstanding any repeal effected by this section, the last paragraph of the said subsection (3) shall continue to have effect in relation to any motor car, chassis, component part or accessory which is shown to the satisfaction of the Commissioners to have been removed or imported into the Isle of Man before the said twenty-second day of June.

Duties on
musical in-
struments,
clocks,
films, &c.

7. The duties of Customs on—

- (a) musical instruments, including gramophones, pianolas and other similar instruments;
- (b) accessories and component parts of musical instruments, and records and other means of reproducing music;
- (c) clocks, watches and component parts of clocks and watches; and
- (d) cinematograph films,

removed or imported into the Isle of Man imposed by the Isle of Man (Customs) Act, 1925, shall continue to be charged, levied and paid as from the first day of August, nineteen hundred and twenty-six, until the first day of August, nineteen hundred and twenty-seven.

Duties on
silk.

8.—(1) Save as hereinafter provided, the duties of Customs on silk or artificial silk removed or imported into the Isle of Man imposed by the Isle of Man (Customs) Act, 1925, shall continue to be charged, levied and paid as from the first day of August, nineteen hundred and twenty-six, until the first day of August, nineteen hundred and twenty-seven :

Provided that, in the case of silk tissues of which the warp or weft consists of yarn wholly or partly discharged and the weft or warp of undischarged yarn, the duty payable in respect of the tissue shall, instead of being charged at the rate of seven shillings and ninepence the pound, as provided by Part I. of the Schedule to that Act, be charged at the rate of five shillings and threepence the pound in respect of the undischarged yarn, and at the rate of seven shillings and ninepence the pound in respect of the yarn wholly or partly discharged which is contained therein.

(2) Where, on or after the first day of August, nineteen hundred and twenty-six, any article of apparel made wholly or partly of silk is removed or imported into the Isle of Man by any person for his own use and not for sale, the article, instead of being charged with duty in accordance with the provisions of Part I. of the Schedule to the Isle of Man (Customs) Act, 1925, may, at the option of the importer, be charged with a duty calculated on the whole weight of the article at a rate equal to twice the rate of the duty chargeable under the said Part I. in respect of the class of silk contained in the article.

For the purposes of this subsection—

- (i) the expression “ silk ” includes artificial silk ;
- (ii) where silk of several classes is contained in the article, the article shall be chargeable with duty as if all the silk so contained were silk of that one of those classes in respect of which the highest rate of duty is payable under the said Part I. ;
- (iii) in determining the class to which any silk belongs, regard shall be had to the stage of manufacture in which the silk appears in the article.

9. The duties of Customs on wines removed or imported into the Isle of Man imposed by the Isle of Man (Customs) Act, 1925, shall continue to be charged, levied and paid as from the first day of August, nineteen hundred and twenty-six, until the first day of August, nineteen hundred and twenty-seven. Duties on wines.

10.—(1) The duty of Customs on lace removed or imported into the Isle of Man imposed by the Isle of Man (Customs) Act, 1925, shall continue to be charged, levied and paid as from the first day of August, nineteen hundred and twenty-six, until the first day of August, nineteen hundred and twenty-seven. Duties on lace.

(2) Where it appears to the Lieutenant-Governor of the Isle of Man as respects any articles, or articles of any class, liable to duty under this section as consisting of or containing lace or embroidery, to be inexpedient having regard to the small value of that lace or embroidery that duty should be charged thereon, the Lieutenant-Governor may by order exempt those articles, or articles of that class, from duty under this section.

11. On and from the twenty-second day of June, nineteen hundred and twenty-six, Customs duties shall not be charged in respect of any goods (other than wines or spirits) removed or imported into the Isle of Man which are proved to the satisfaction of the Commissioners of Customs and Excise to have been manufactured or produced more than one hundred years before the date of removal or importation. Remission of Customs duties in case of antique articles.

12.—(1) On and from the twenty-second day of June, nineteen hundred and twenty-six, there shall be Duties on matches.

charged, levied and paid on matches removed or imported into the Isle of Man a duty of Customs at the rate of five shillings and twopence for every ten thousand matches so removed or imported:

Provided that, where the Commissioners of Customs and Excise are satisfied that a box of matches so removed or imported contains more than eighty matches, the duty of Customs to be charged on any matches so contained exceeding eighty shall be at the rate of three shillings and fivepence instead of at the rate of five shillings and twopence for every ten thousand matches.

(2) For the purposes of the duties under this section a match which has more than one point of ignition shall be reckoned as so many matches as there are points of ignition.

(3) The Commissioners of Customs and Excise may make regulations with respect to the collection of the duties under this section, and may for that purpose apply, with the necessary modifications, to matches removed or imported into the Isle of Man any enactments applicable to duties on matches imported into Great Britain or Northern Ireland.

Duties for
safeguard-
ing key in-
dustries.

13.—(1) Subject as hereinafter provided, on and from the twenty-second day of June, nineteen hundred and twenty-six, there shall be charged, levied and paid on the removal or importation into the Isle of Man of the goods specified in the first column of the Second Schedule to this Act respectively the duties of Customs specified in the second column of that Schedule.

(2) Where any other duties of Customs are chargeable in respect of any goods chargeable with duty under this section, duty under this section shall not be charged except in so far as the amount thereof exceeds the amount of those other duties.

(3) No duty shall be charged under this section on goods which are shown to the satisfaction of the Commissioners of Customs and Excise to have been consigned from and grown, produced or manufactured in the British Empire, and for the purposes of this subsection goods shall be deemed to have been manufactured in the British Empire which would be treated as having been so manufactured for the purposes of section eight of the Finance Act, 1919 (which relates to Imperial preference)

if the Isle of Man were substituted in that section for Great Britain and Northern Ireland, and that section as so modified shall apply accordingly, with the substitution of the Lieutenant-Governor of the Isle of Man for the Board of Trade.

(4) Where an imported article is a compound article of which an article liable to duty under this section is an ingredient or forms part, no duty shall be charged under this section in respect of the compound article if the compound, is of such a nature that the article liable to duty has lost its identity, and any dispute as to whether an article has lost its identity shall be determined in the same manner as disputes arising as to the proper rate of duty payable under this section.

(5) The provisions of section ten of the Isle of Man (Customs) Act, 1925 (which relates to the definition of value for the purposes of ad valorem duties), shall apply for the purposes of the assessment and collection of duties under this section as they apply for the purposes of the assessment and collection of duties under that Act.

(6) The Lieutenant-Governor of the Isle of Man may by order exempt any articles mentioned in the order which are liable to duty under this section from that duty if he is satisfied that, having regard to the nature or small value of the article, it is inexpedient that the duty should be charged.

(7) The Commissioners of Customs and Excise may make regulations with respect to the collection of the duties under this section, and may for that purpose apply, with the necessary modifications, to the goods chargeable with duty under this section on removal or importation into the Isle of Man any enactments applicable to duties chargeable on such goods on importation into Great Britain or Northern Ireland.

14.—(1) On and from the ninth day of March, nineteen hundred and twenty-six, until the first day of August, nineteen hundred and twenty-seven, there shall be charged, levied and paid on the removal or importation into the Isle of Man of the goods (not being goods manufactured in Great Britain or Northern Ireland) specified in the first column of the Third Schedule to this Act respectively the duties of Customs specified in the second column of that Schedule.

Duties on
cutlery,
gloves, and
mantles for
incandes-
cent
lighting.

9 & 10
Geo. 5. c. 32

(2) In the case of any article to which this section applies shown to the satisfaction of the Commissioners of Customs and Excise to have been consigned from and produced or manufactured in the British Empire, the rate of duty shall be two-thirds of the full rate, and the provisions of subsections (1) and (2) of section eight of the Finance Act, 1919, shall apply with respect to the preferential rates referred to in this section as they apply with respect to the preferential rates referred to in that section, and as though those provisions were herein set out and in terms made applicable to the rates referred to in this section, with the substitution of the Lieutenant-Governor of the Isle of Man for the Board of Trade.

(3) Where any article chargeable with duty under this section is also chargeable with any other duties of Customs, the highest duty only shall be charged.

(4) The provisions of section ten of the Isle of Man (Customs) Act, 1925 (which relates to the definition of value for the purposes of ad valorem duties), shall apply for the purposes of the assessment and collection of duties under this section as they apply for the purposes of the assessment and collection of duties under that Act.

(5) The Lieutenant-Governor of the Isle of Man may by order exempt any articles mentioned in the order which are liable to duty under this section from that duty if he is satisfied that, having regard to the small value of the article, it is inexpedient that the duty should be charged.

Duties on
playing
cards.

15.—(1) On and from the twenty-second day of June, nineteen hundred and twenty-six, there shall be charged, levied and paid on playing cards removed or imported into the Isle of Man a duty of Customs at the rate of three shillings and ninepence for every dozen packs :

Provided that, where the Commissioners of Customs and Excise are satisfied that any pack so removed or imported has been manufactured in Great Britain or Northern Ireland, the duty of Customs to be charged on any such pack shall be at the rate of threepence per pack.

(2) The Commissioners of Customs and Excise may make regulations with respect to the collection of the duties under this section, and may for that purpose

apply, with the necessary modifications, to playing cards removed or imported into the Isle of Man any enactments applicable to duties on playing cards imported into Great Britain or Northern Ireland.

16. This Act may be cited as the Isle of Man Short title. (Customs) Act, 1926.

SCHEDULES.

FIRST SCHEDULE.

Section 3.

DUTIES ON SPIRITS.

Nature of Spirits.	Rate of Duty.	
	Consigned from and grown, produced or manufactured in the British Empire.	Consigned from, grown, produced or manufactured elsewhere.
	£ s. d.	£ s. d.
Liqueurs, cordials and mixed or sweetened spirits, entered by the person importing them in bottle in such manner as to indicate that the strength is not to be tested, a duty at the rate of - - - the gallon	4 14 1	4 17 5
Perfumed spirits - the gallon	5 11 0	5 15 0

SECOND SCHEDULE.

Section 13.

GOODS CHARGED WITH DUTY UNDER SECTION THIRTEEN.

Article.	Duty.
Optical glass and optical elements, whether finished or not, microscopes, field and opera glasses, theodolites, sextants, spectroscopes and other optical instruments, and component parts of any such optical instruments.	A duty at the rate of one-half of the value of the article.

2ND SCH.
—cont.

Article.	Duty.
Beakers, flasks, burettes, measuring cylinders, thermometers, tubing, and other scientific glassware and lampblown ware, evaporating dishes, crucibles, combustion boats, and other laboratory porcelain.	A duty at the rate of one-third of the value of the article.
Galvanometers, pyrometers, electroscopes, barometers, analytical and other precision balances, and other scientific instruments, gauges and measuring instruments of precision of the types used in engineering machine shops and viewing rooms, whether for use in such shops or rooms or not, and component parts of any such scientific instruments.	Ditto.
Wireless valves and similar rectifiers, and vacuum tubes.	Ditto.
Ignition magnetos and permanent magnets.	Ditto.
Hosiery latch needles - - - -	Ditto.
Metallic tungsten, ferro-tungsten, and manufactured products of metallic tungsten and compounds (not including ores or minerals) of thorium, cerium and other rare earth metals.	Ditto.
All synthetic organic chemicals (other than synthetic organic dyestuffs, colours, and colouring matters imported for use as such, and organic intermediate products imported for their manufacture), analytical reagents, all other fine chemicals (except sulphate of quinine of vegetable origin) and chemicals manufactured by fermentation processes.	Ditto.
Amorphous carbon electrodes (but not including primary battery carbons or arc-lamp carbons).	Ditto.
Molybdenum, ferro-molybdenum, and molybdenum compounds, and vanadium, ferro-vanadium, and vanadium compounds (but not including ores and minerals of molybdenum or vanadium).	Ditto.
Arc-lamp carbons - - - -	A duty at the rate of one shilling per pound weight.

THIRD SCHEDULE.

Section 14.

GOODS CHARGED WITH DUTY UNDER SECTION
FOURTEEN.

Article. 	Rate of Duty.
CUTLERY.	
Knives with one or more blades made wholly or partly of steel or iron, other than surgical knives or knives for use in machines.	A duty at the rate of one-third of the value of the article.
Scissors, including tailors' shears and secateurs, made wholly or partly of steel or iron.	Ditto.
Safety razors and component parts thereof.	Ditto.
Razors, other than safety razors - - -	Ditto.
Carving forks - - - - -	Ditto.
Knife sharpeners wholly or partly of steel.	Ditto.
Handles, blades or blanks for any of the above-mentioned articles.	Ditto.
GLOVES.	
Gloves made in whole or in part of leather or of fur, and leather or fur cut out ready for sewing into gloves, but not including gloves known as astrakhan gloves or gloves in which leather is used only as trimming or binding.	Ditto.
Gloves cut out of woven or knitted material consisting in whole or in part of cotton and sewn up and known as fabric gloves, and material for such gloves cut out ready for sewing.	Ditto.

3RD SCH
—cont.

Article.

Rate of Duty.

MANTLES FOR INCANDESCENT
LIGHTING.Mantles for incandescent lighting,
whether collodionised or not.A duty at the rate
of six shillings the
gross.Impregnated hose or stockings for use in
the manufacture of such mantles.A duty at the rate
of four shillings and
sixpence per pound
weight.

CHAPTER 28.

An Act to make provision for facilitating the working of minerals and the better organisation of the coal mining industry, and with respect to the welfare of persons employed therein, and for other purposes connected with that industry.

[4th August 1926.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

PROVISIONS FOR FACILITATING THE RE-ORGANISATION OF
THE COAL MINING INDUSTRY.

Power to
prepare
and submit
to Board
of Trade
amalgama-
tion and
absorption
schemes.

1.—(1) Where with a view to the more economical and efficient working, treating, or disposing of coal the owners of two or more undertakings consisting of or comprising coal mines agree to amalgamate their undertakings either wholly or partially, they may prepare and submit to the Board of Trade a scheme (hereinafter referred to as an amalgamation scheme) framed in accordance with the provisions of this Part of this Act.

(2) Where the owner of any such undertaking, or where the owners of two or more such undertakings who have agreed to amalgamate, consider that in the interests of the more economical and efficient working, treating,